

**BEFORE THE BEHAVIOR HEALTH PROFESSIONALS BOARD OF
THE STATE OF IOWA**

IN THE MATTER OF MICHAEL A. COX RESPONDENT	CASE NO.: 2024-0027 DIAL NO.: 27DBBH0002 NOTICE OF HEARING AND STATEMENT OF CHARGES
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COMES NOW the Iowa Behavioral Health Professionals Board (“Board”) and files this Notice of Hearing and Statement of Charges against Michael A. Cox (“Respondent”), pursuant to Iowa Code sections 17A.12(2), 17A.18(3), and 272C.3(1)(e), and 481 Iowa Administrative Code rule 506.5.

A. TIME, PLACE AND NATURE OF HEARING

1. **Hearing.** A contested case hearing shall be held virtually starting at 9:00 a.m. on October 9, 2026. The link to participate virtually is <https://meet.google.com/czu-ruhj-mun> or you may dial 501-897-6169 (PIN 243 973 748#). You must be able to utilize the video-function and be on camera for the duration of the hearing. If you have trouble connecting, you may call 515-281-6468 or email adminhearings@dia.iowa.gov. If you wish to have this matter converted to an in-person hearing, you may make this request at the earliest opportunity by contacting the Administrative Hearings Division at adminhearings@dia.iowa.gov.

2. **Presiding Officer.** The Iowa Board of Behavioral Health Professionals voted unanimously to delegate this matter to the Administrative Law Judge from the Administrative Hearings Division of the Department of Inspections, Appeals and Licensing, to hear this contested case hearing as well as any pre-hearing matters which may be filed by any parties. The Administrative Law Judge shall serve as presiding officer at the contested case hearing, as well as

make initial rulings on prehearing matters.

3. **Prehearing Conference.** Any party may request a prehearing conference to discuss evidentiary issues related to the hearing in accordance with Iowa Administrative Code 481-506.17.

4. **Answer.** Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges you may file an Answer. In that Answer, you should also state whether you will request a continuance of the date and time of the hearing.

5. **Filing of Pleadings.** Motion or other pleadings shall be filed pursuant to Iowa Administrative Code 481–506.16. All prehearing motions must be in writing and filed electronically using the Administrative Electronic Document Management System (adminhearings.iowa.gov/efile/) or by using the following contact information:

Administrative Hearings Division, Central Panel Bureau
6200 Park Avenue, Suite 100, East Entrance
Des Moines, Iowa 50321
Phone: 515-281-6468
Fax: 515-281-4477
Email: adminhearings@dia.iowa.gov

6. **Witness and Exhibit lists.** The parties must file and exchange witness and exhibit lists, as well as copies of all proposed exhibits, at least five days prior to the hearing date, by using the Administrative Electronic Management System (adminhearings.iowa.gov/efile/) or by emailing the Administrative Hearings Division at adminhearings@dia.iowa.gov.

7. **Hearing Procedures.** The procedural rules governing the conduct of the hearing are found at 481 Iowa Administrative Code rule 506.19. At the hearing, you may appear personally or be represented by legal counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at hearing. If you need to request an alternative time or date for hearing, you must comply with the

requirements of 481 Iowa Administrative Code rule 506.18. For disciplinary hearings, the hearing may be open to the public or closed to the public at the discretion of the Respondent.

8. **Prosecution.** The Office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of all pleadings and motions filed shall be provided to counsel for the State at the following email: Dana R. Minter, Assistant Attorney General, dana.minter@ag.iowa.gov.

9. **Communications.** You may not contact the Administrative Law Judge or Board members in any manner, including by phone, letter, facsimile, in person or e-mail, about this Notice of Hearing and Statement of Charges. The Administrative Law Judge may only receive information about the case when all parties have notice and an opportunity to participate, such as at the hearing or in pleadings you file with the Administrative Hearings Division and serve upon all parties in the case. You may contact Tony Alden, Board Executive, Iowa Board of Behavioral Health Professionals, at 515-281-4401 or by email at tony.alder@dia.iowa.gov, or Assistant Attorney General Dana R. Minter, at 515-281-6362 or by email at dana.minter@ag.iowagov.

B. LEGAL AUTHORITY AND JURISDICTION

10. **Iowa License.** Respondent was issued Iowa mental health counselor license 090334 on January 31, 2018. Respondent's Iowa mental health counselor license is active and will next expire on September 30, 2026.

11. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147.55, 154D, and 272C.

12. **Legal Authority.** If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 147, 154D, and 272C and 481 Iowa Administrative Code chapters 504 and 882.

13. **Default.** The Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code Section 17A.12(3) and Iowa Administrative Code rule 506.21.

C. STATEMENT OF CHARGES

COUNT I

14. Respondent is charged under Iowa Code section 147.55(7) and 481 Administrative Code rule 504.2(18) for failing to comply with the terms of a board order or the terms of a settlement agreement or consent order.

D. STATEMENT OF THE MATTERS ASSERTED

15. **Practice Setting.** Respondent is an Iowa licensed mental health counselor who practiced mental health counseling via telehealth in Iowa, during the time period relevant to these allegations.

16. **Allegations.** A short and plain Statement of the Matters Asserted (Statement) was reviewed and approved by the Board at the time this Notice of Hearing and Statement of Charges was filed. The Statement shall be furnished to Respondent as an attachment to this Notice of Hearing and Statement of Charges. However, the Statement is not a public record pursuant to Iowa Code section 272C.6(4)(a).

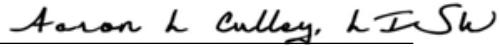
E. SETTLEMENT

17. This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at Iowa Administrative Code rule 506.35. If you are interested in pursuing settlement of this matter, please contact the Assistant Attorney General identified above.

F. PROBABLE CAUSE FINDING

18. On January 27, 2026, the Iowa Board of Behavioral Health Professionals found probable cause to file this Notice of Hearing and Statement of Charges.

Dated this 27th day of January, 2026.



Aaron Culley, Chairperson
Iowa Board of Behavioral Health Professionals

Copies to:
Assistant Attorney General Dana R. Minter
Respondent Michael A. Cox

PLEASE NOTE: If you require the assistance of auxiliary aids or services to participate in this matter because of a disability, immediately call 515-281-0233. (If you are hearing impaired, call Relay Iowa TTY at 1-800-735-2942).